IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, PRETORIA

CASE NO: 2025-137857

In the *ex parte* matter between:

PETER ANDREW FAUCITT (Identity Number: 520430 5708 18 5)	**APPLICANT**

And

JACQUELINE FAUCITT (Identity Number: 570607 0898 18 1)	**FIRST RESPONDENT**
DANIEL JAMES FAUCITT (Identity Number: 820715 5300 18 2)	**SECOND RESPONDENT**

IN RE:

PETER ANDREW FAUCITT *(Identity Number: 520430 5708 18 5)*	***APPLICANT***

And

JACQUELINE FAUCITT *(Identity Number: 570607 0898 18 1)*	***FIRST RESPONDENT***
DANIEL JAMES FAUCITT *(Identity Number: 820715 5300 18 2)*	***SECOND RESPONDENT***

REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD *(Registration Number: 2011/005722/07)*	***THIRD RESPONDENT***
REGIMA SKIN TREATMENTS CC *(Registration Number: 1992/005371/23)*	***FOURTH RESPONDENT***
VILLA VIA ARCADIA NO 2 CC *(Registration Number: 1996/004451/23)*	***FIFTH RESPONDENT***
STRATEGIC LOGISTICS CC *(Registration Number: 2008/136496/23)*	***SIXTH RESPONDENT***
FIRSTRAND BANK LTD t/a FIRST NATIONAL BANK	***SEVENTH RESPONDENT***
ABSA BANK LIMITED	***EIGHTH RESPONDENT***
THE COMPANIES AND INTELLECTUAL PROPERTY COMMISSION	***NINTH RESPONDENT***

FOUNDING AFFIDAVIT

I, the undersigned,

PETER ANDREW FAUCITT,

do hereby make oath and say:

1.

1.1 I am a major businessman, with identity number 520430 5708 18 5.

1.2 I am resident at 20 River Road, Morning Hill, Bedfordview.

1.3 The facts herein contained fall within my personal knowledge, unless otherwise stated or as may otherwise appear from the context in which they are stated and are, to the best of my knowledge, both true and correct.

1.4 I have been involved personally, and continuously with the subject-matter of this application. I am accordingly able to confirm, as I hereby do, that the contents of this affidavit fall within my personal knowledge, unless otherwise stated or as may otherwise appear from the context in which they are stated and are, to the best of my knowledge, both true and correct.

1.5 Any submissions of a legal nature are made on the advice of my legal representatives, which advice I have accepted as being true and correct, and upon which I act accordingly.

1.6 The contents of the documents to which reference is made herein must be read, with respect, as if specifically incorporated, and repeated herein.

2.

2.1 As aforesaid, I am the applicant herein.

2.2 The first respondent is my wife, **JACQUELINE FAUCITT**, a major businesswoman with Identity Number 570607 0898 18 1, who is resident at 20 River Road, Morning Hill, Bedfordview.

2.3 The second respondent is my son, **DANIEL JAMES FAUCITT**, a major businessman with Identity Number 820715 5300 18 2, who is resident at Suite no. 132, Nicol Hotel, Corner Nicol Road and Skeen Boulevard, Bedfordview.

3.

3.1 This Honourable Court has the necessary jurisdiction to adjudicate this application.

3.2 This application follows the initial application (the "*main application*") I caused to be lodged under the above case number on an urgent basis against the first and second applicants herein, and the remainder of the applicants therein, on 14 August 2025.

3.3 In that application an order was granted on 19 August 2025, a copy of which is annexed hereto marked "**PF12**", which was served duly on the first and second respondents; proof thereof will have been uploaded onto caselines.

3.4 I refer to the contents of the founding affidavit in the main application as if specifically incorporated herein to avoid rendering this affidavit unnecessarily prolix. The contents of the founding affidavit are, with respect, essential to this application.

3.5 The respondents have filed notice of intention to oppose the main application, but have agreed to uphold the order (and accordingly, no opposition thereto is at hand).

3.6 No relief, in this application, is sought against the third to ninth respondents in the main application, save for a costs order if it should be opposed.

3.7 For convenience' sake I shall refer hereinafter to the first respondent as "***my wife***", to the second respondent as "***my son***", and to them jointly as the "***respondents***".

AD THE FIRST MEDIATED AGREEMENT

4.1 Although the respondents have not fully opposed the main application, they appointed ENS Attorneys to advise, and to assist them.

4.2 After an order was obtained under PART A of the main application, and due to our personal relationships, a mediation was arranged between the respondents and I (represented by our attorneys), which was held on 18 September 2025, and conducted by Mr Charles Nupen.

4.3 A copy of the mediation agreement is annexed hereto marked "**PF13**", and certain relevant correspondence is annexed hereto as "**PF14**".

4.4 The mediation endured from approximately 10AM until just after 16:30PM, and was successful in that two agreements were reached between the respondents, and I.

4.5 Annexed hereto, marked "**PF15**", is a copy of the mediated agreement, which deals with the medical assessments of my wife, and son (the "***first settlement agreement***"); the second is annexed hereto marked "**PF16**", which is concerned with the forensic investigations into the affairs of our various entities (the "***second settlement agreement***").

4.6 As appears from the first settlement agreement, my son agreed to submit to being screened for drugs, and my wife agreed to undergo a psychiatric evaluation; both my wife, and son agreed to further assistance and evaluation, subject to views and requests of the relevant experts.

4.7 For the sake of fairness and transparency, I also agreed to being tested for drugs, and to undergo a psychiatric evaluation; I am proceeding with both, as appears from annexures "**PF17**", and "**PF18**" hereto.

5.

5.1 It is important to note, with respect, that the aforesaid agreements were not reached in settlement of the entire matter between the first and second respondents, and I:

5.1.1 As appears from the first agreement, it was recorded that:

5.1.1.1 A number of disputes arose in relation to the order granted by this Court, and the relief sought in respect of PART B of the proceedings under the above case number. (Clause 1.1)

5.1.1.2 The parties have agreed to settle in good faith the disputes which exist between them on the basis set out below,

which, subject to further agreement, does not finalise the aforesaid proceedings. (Clause 1.2)

5.1.2 As appears from the second agreement, it was recorded that:

5.1.2.1 A number of disputes arose in relation to the order granted by this Court, and the relief sought in respect of PART B of the proceedings under the above case number. (Clause 1.1)

5.1.2.2 The parties agree to remain bound by the terms of the aforesaid order of Court until such a time as same is set aside or agreement is reached with regards to the finalisation of the aforesaid matter. (Clause 1.3)

5.1.2.3 Clause 26 provides that pending the mediation referred to in paragraph 2.5 above, the time periods for the filing of further papers in respect of the proceedings under case number 2025-137857 remain suspended, as the proceedings remain pending.

5.1.2.4 Clause 27 provides that insofar as the Court order dated 19 August 2025 under case number 2025-137857 is concerned, the parties agree that paragraph 2.8.3 will be read as follows:

"... are interdicted and directed to answer all questions put to them in regard to the forensic investigation and the experts appointed by the forensic investigators, honestly and forthrightly."

5.1.2.5 Clause 28 provides that this shall not preclude any party from approaching a Court for any appropriate or necessary relief.

6.

6.1 Regrettably, with respect, the respondents have refused to comply with the first (and second) settlement agreement, and I am constrained to apply to have that agreement made an order of Court, as I now do.

6.2 Given the familial relationship between my wife and son, and I, I will do anything I can to prevent the necessity of an order in terms of PART B of the main application – I remain of the view that the relief is warranted, however.

6.3 I sought, and still seek for them to be evaluated as agreed in the first settlement agreement, in the hope that they can be treated, and be restored to full health, which will not only be of benefit to the entities of

which they are members and directors, but will also be of benefit to them personally.

6.4 For those purposes I am compelled to seek an order making the first settlement agreement an order of Court.

6.5 On 22 September 2025, the respondents informed (annexure "**PF20**" hereto) their attorneys that they '*withdraw*' from both agreements; on 23 September 2025 they informed my attorneys thereof, as appears from same letter forwarded to them on that date.

6.6 The lack of coherence in annexure "**PF20**" hereto speaks, with respect, for itself.

6.7 Needless to say, with respect, I deny the allegations contained in that document, which are untrue.

6.8 The respondents' then attorneys (ENS Attorneys) withdrew thereafter.

6.9 The attempted repudiation of the settlement agreements is not accepted; the respondents are bound thereto, and they are held thereto.

6.10

6.10.1 Although neither settlement agreement provides expressly for the making thereof an order of Court, clause 5.1 of the mediation agreement (annexure "**PF13**" hereto) provides that the confidentiality of any resulting settlement, or its terms, does not apply in instances where disclosure is required to implement, or enforce the terms of any settlement.

6.10.2 Clause 5.2 of the mediation agreement provides further that:

> *"All information arising out of, or in connection with the mediation will be without prejudice, privileged and not admissible as evidence or disclosable in any current or subsequent litigation or other proceedings whatsoever. This does not apply to any information which would in any event have been admissible or disclosable in any such proceedings, and will not apply to any settlement agreement reached therein, if any."*

6.11 I say with respect, that making both the settlement agreements an order of Court will be to the benefit of the respondents herein, and the remaining respondents in the main application, and may eliminate the necessity of proceeding with PART B of the application, and obtaining an order therein.

6.12 Needless to say, with respect, if there is mental degradation or drug abuse (which will also result in mental impairment), it will certainly not be in the best interests of either the respondents — who are shareholders, and hold members' interests in the third to sixth respondents in the main application — or those entities themselves, if the respondents herein remain in controlling positions.

6.13 In the premise, it will be in the best interests of all concerned if the first settlement agreement is made an order of Court, and the respondents acquire the necessary evaluation, and treatment.

7.

7.1 In the paragraphs below I sketch, briefly, some of my concerns regarding my son.

7.2 My son has '*managed*' the third respondent in the main application since its inception; he has, however, been an '*absent*' director, and his tenure has been accompanied by a monthly loss to that corporation of approximately R600,000.00, which have been borne (of necessity) by the other entities.

7.3 He did not squander money in the past; his difficulties began approximately two years ago.

7.4 His personality has also changed in that he has become reclusive, as opposed to outgoing and social, and he has become erratic in his communications and decisions, which leads me to the inescapable conclusion that he abuses drugs, and is probably an addict (although I do hope I am wrong).

7.5

7.5.1 Those losses relate, inter alia, to '*online*' purchases and subscriptions, that mainly do not form part of the third respondent's business, and from which no income is derived; I caused the third respondent's accounts, which held these online debits, to be closed on 11 September 2025 accordingly, despite which no negative effect arose to any of the entities.

7.5.2 The only conclusion is that the expenses were not business related and/or served no actual purpose.

7.5.3 The third respondent has since experienced no losses.

7.6 When I confronted my son regarding the third respondent's losses, his reaction was purely defiant; he declared again that he would still not return to the office due to my distrust, and now evidently holds a grudge against me – he has not been in office other than for the odd meeting

(where he usually arrives over an hour late), since his appointment as director.

7.7 He cannot appreciate that I am acting in his best interests, and in the best interests of the entities that sustain us.

8.

8.1 Regarding my wife, I draw the attention of the Court, with respect, to the following, which is also relevant to this application.

8.2 After I voiced my concerns to her regarding our son she, instead of displaying any concern, flew immediately to his defence, and persists therein.

8.3

8.3.1 As I indicated in my founding affidavit in the main application, after I stopped her business cards, my wife simply re-approached the banks (being the seventh and eight respondents in the main application) and obtained duplicate/new cards, on or about 24 June 2025.

8.3.2 She adopted an '*I will show you*' approach, defended our son, and then transferred to him the sum of R500,000.00 (from the

said business accounts) on or about 16 July 2025, as a '*birthday gift*', which I did not authorise, and which he was not entitled to accept; my wife has no other sources of income other than through the repayment of loan accounts and/or the possibility of dividends from the third to sixth respondents.

8.3.3 This was done without my knowledge, the expense cannot remotely be described as being a legitimate business expense, and was separate to her, and our son's remuneration.

8.4 She never squandered money before her erratic behaviour began.

8.5 My wife has also become extremely inconsistent, and erratic in her management of our entities over the last three years (approximately), for example, after agreeing to business decisions, and signing agreements, she has thereafter stated her disagreement therewith, in no uncertain terms, and has, during or about 2025, taken exception to (according to her) the '*sudden opening of savings accounts*' for our entities with ABSA Bank, which have been open for years.

9.

9.1 While I am not a medical practitioner, it is evident to me that something is not quite right with my wife, to the extent that she is no longer capable

of participating in the management of our entities, which must be protected from her. The same applies to our son.

9.2 There must, with respect, be an explanation for the deterioration in her behaviour, which is clearly symptomatic of a mental ill-health nature, and the deterioration in my son's behaviour, which may well be the result of a non-trivial drug addiction. My only concerns are their well-being, and the well-being of our entities, which sustain all of us.

9.3 Fortunately, I manage the day-to-day running of the affairs of the entities concerned, and I have seen thereto that my wife, and son, continue to receive their usual benefits.

9.4 Similarly to my son, my wife cannot appreciate that I am acting in her best interests, and in the best interests of the entities that sustain us.

9.5 I am supported in my contentions by the Clinical Psychologist, Mr Eugene du Plessis, whose opinion (annexure "**PF21**" hereto) includes the following:

9.5.1 *"It is concerning that the conditions of the settlement are not being met and what this could mean. The conditions appear straightforward. There could be a broader range of difficulties that could potentially underlie the issues described. Some addictive type behaviours can be behavioural for example. The author*

would have been curious about what Mr Daniel Faucitt had spent the money on- it could include activities such as gaming, porn and gambling which could all become compulsive. Compulsive shopping can also become destructive. Aside from dementias, there are other medical conditions that could cause cognitive issues such as iron deficiencies or thyroid issues. The author would probably have recommended a broader assessment. Finding if there are any medical issues affecting Ms Faucitt could be of benefit to her ongoing quality of life. It is concerning that the parties are not complying with the conditions set out in a settlement agreement that was recently agreed to. It does raise questions." (Page 2, Lines 1 – 12)

9.5.2 *"The behaviours reported appeared odd and warrant further investigation, as was agreed to. They could suggest several issues or diagnostic considerations, but it is unclear what is happening without further investigation."* (Page 2, Lines 15 – 17)

9.5.3 *"Hair follicle analysis for drug use is very good at detecting a history of drug use over a period of several months. It may be prudent though to confirm if the test used covers locally abused substances such as methcathinone, sleeping medication, mandrax and benzodiazepines."* (Page 2, Lines 18 – 21)

9.5.4 *"Hair follicle testing has been found to be scientifically valid and reliable (see reviews such as Boumba et al, 2006 & Pragst & Balikova, 2006). They offer the advantage of giving a longer picture of substance use. There is a lot of literature supporting its use. Knowing what the money that Mr Faucitt spent was spent on could also be important to understanding what is happening."* (Page 3, Lines 5 – 9)

9.5.5 *"It may be prudent to involve a General Practitioner who can possibly do a basic health assessment including urine and blood testing on Ms Faucitt. It may be that the difficulties that have been noticed could be part of a more serious cognitive issue, or it could be part of a less serious easily managed issue."* (Page 3, Lines 10 – 13)

9.6 I have proceeded, in compliance with the agreements, to consult with same on 02 October 2025.

10.

<u>*AD* THE SECOND MEDIATED AGREEMENT</u>

10.1 In the paragraphs below, I place on record what has transpired with the second mediated agreement (annexure "**PF16**" hereto), and the order of this Honourable Court.

10.2 Auditors were instructed on, or about, 17 September 2023, as appears from annexure "**PF22**" hereto; I have performed in accordance with the order of this Court.

10.3 Notifications of the internal transfers have been provided (per clause 2.2 thereof), as appears from annexure "**PF23**" hereto.

10.4 No list of *bona fide* business related expenses was provided by my son, per clause 2.3 thereof.

10.5 The SAGE payment was made prior to the mediation, as pertains to clause 2.4.1 thereof.

10.6 No expenses listed in clause 2.4.3 thereof have been provided by the respondents.

10.7 Once again, with respect, I am compliant with the terms of the agreement; the respondent have not complied therewith, or with the order issued by this Honourable Court;

10.8 The respondents have also sought to withdraw from this agreement, as aforesaid.

10.9 The respondents have further not complied with the order of this Court:

10.9.1 Correspondence annexed hereto, marked "**PF24**" and "**PF25**", records interference with the respondent entities;

10.9.2 Correspondence attached hereto, marked "**PF26**", records non-compliance regarding the business banking cards in the respondents' possession;

10.9.3 Paragraph 2.8.2 of the order has not been complied with: no financial details have been surrendered to me, or to my attorneys.

10.10 It is essential, with respect, that the second settlement agreement is also made an order of Court.

10.11 Neither the first, nor the second respondent are employees of the third to sixth respondents in the main application.

11.

11.1 Although I have been advised that I can pursue contempt proceedings regarding the aforesaid defiance of the order of this Court, I would rather pursue all other avenues in avoiding the necessity of an order in terms of Part B of the notice of motion.

11.2 If the settlement agreements are made an order of Court, the probability of the respondents complying therewith, and with the order already issued should, with respect, increase substantially.

11.3 If the respondents continue to fail to comply therewith, and do not obtain the help they need, alternatively if such help is unsuccessful, I will have no option but to persist with PART B of the application, to protect our entities, and thereby also my wife, my son, and I.

12.

***AD* COSTS**

As appears from the notice of motion, I only seek a costs order against the respondents if they oppose this application.

WHEREFOR I PRAY, WITH RESPECT, FOR AN ORDER IN TERMS OF THE NOTICE OF MOTION

DATED AT PRETORIA ON 02 OCTOBER 2025

DEPONENT

I CERTIFY THAT THE DEPONENT HAS ACKNOWLEDGED THAT HE KNOWS AND UNDERSTANDS THE CONTENTS OF THIS AFFIDAVIT, WHICH WAS SIGNED AND SWORN BEFORE ME AT PRETORIA ON 02 OCTOBER 2025; THE REGULATIONS CONTAINED IN GOVERNMENT NOTICE NO. R 1258 OF 21 JULY 1972, AS AMENDED, HAVING BEEN COMPLIED WITH—THE DEPONENT HAVING ACKNOWLEDGED THAT HE UNDERSTANDS THE CONTENTS OF THIS AFFIDAVIT, HAS NO OBJECTION TO TAKING THE PRESCRIBED OATH AND CONSIDERS THE OATH TO BE BINDING ON HIS CONSCIENCE

COMMISSIONER OF OATHS

COMMISSIONER OF OATHS (RSA)
RUAN KOK
Attorney
Van der Walt Attorneys
Unit 11 Garsfontein Office Park
645 Jacqueline Drive. Garsfontein. Pretoria